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Subject: Indian Knowledge Systems (IKS)

Topic: The Right to Information (RTI) Act, 2005

1. Introduction

The Right to Information (RTI) Act, 2005 is a landmark legislation in India that empowers citizens to request information from any "Public Authority." It was enacted on **12th October 2005**, replacing the old Freedom of Information Act, 2002.

The core philosophy of RTI is that in a democracy, the people are the masters and the government is the servant. To make this relationship work, there must be transparency. RTI acts as a "watchdog" of democracy, ensuring that the government remains accountable for its actions and expenditures.

2. Objectives of the Act

The primary goals of the RTI Act are as follows:

- **Empowerment of Citizens:** It gives common people the legal right to ask questions and seek records from the government.
- **Transparency:** It brings the functioning of government departments into the public eye.
- **Accountability:** By making information accessible, it makes officials responsible for their decisions.
- **Check on Corruption:** It serves as a powerful tool to expose scams, delays, and mismanagement in public offices.

3. Key Features and Provisions

The Act has several important sections that define how it works:

- **Public Authority (Section 2h):** Information can be sought from any body constituted by the Constitution, Parliament, or State Legislature, including NGOs substantially financed by the government.
- **Public Information Officer (PIO):** Every government department must designate a PIO. Their job is to receive applications and provide information to the citizens.
- **Nominal Fee:** An application can be filed on plain paper with a basic fee of **₹10** (for Central Govt). People below the poverty line (BPL) are exempt from paying any fees.
- **Time Limit (Section 7):**
    - **30 Days:** Standard time for the PIO to respond.
    - **48 Hours:** If the information concerns the **life or liberty** of a person.

4. The Application and Appeal Process

If a citizen is not satisfied with the response, the Act provides a three-tier structure for justice:

1. **Application:** The citizen submits a request to the PIO of the relevant department.
2. **First Appeal:** If no response is received within 30 days or the response is unsatisfactory, the citizen can appeal to the **First Appellate Authority (FAA)**, who is a senior officer in the same department.
3. **Second Appeal:** If the first appeal fails, the matter goes to the **Central Information Commission (CIC)** or the **State Information Commission (SIC)**. Their decision is final and binding.

5. Exemptions (Section 8)

Not all information can be shared. The government can refuse to provide information that:

- Affects the **sovereignty and integrity** of India.
- Relates to **national security**, strategic, or scientific interests.

- Includes **trade secrets** or intellectual property.
- Is prohibited by a Court of Law.
- Specifically, intelligence and security agencies like **IB, RAW, and BSF** are generally excluded from the RTI's ambit unless there are allegations of corruption or human rights violations.

6. Conclusion

The RTI Act, 2005 has changed the face of Indian administration. It has moved the system from a culture of "secrecy" to a culture of "openness." While there are challenges like the safety of RTI activists and a backlog of cases, it remains the most powerful tool for a common citizen to participate in governance. It ensures that the government is not just "of the people" and "for the people," but also **"answerable to the people."**